Docusign Envelope ID: F6653843-A07D-4021-A477-59748E03EBD9

Effective Date: March 24, 2026

ACTION BY UNANIMOUS WRITTEN CONSENT

IN LIEU OF A MEETING

OF THE BOARD OF DIRECTORS

OF

TOBE ENERGY CORP.

The undersigned, constituting all of the members of the Board of Directors (the "Board") of Tobe Energy Corp., a Delaware corporation (the "Company"), pursuant to Section 141(f) of the Delaware General Corporation Law (the "DGCL") and Section 23 of the Company's Bylaws, adopt the following resolutions by unanimous written consent:

1. ACCEPTANCE OF OFFICER RESIGNATION — LOUIS MOUNSEY

WHEREAS, Louis Mounsey submitted his resignation from the position of Chief Financial Officer of the Company via email on March 1, 2026, effective immediately; and

WHEREAS, Louis Mounsey also held the office of Secretary of the Company, as appointed in the Action by Unanimous Written Consent of the Board of Directors dated May 9, 2025; and

WHEREAS, the Board wishes to accept Mr. Mounsey's resignation and clarify the scope thereof;

NOW, THEREFORE, BE IT RESOLVED, that the Board hereby accepts Louis Mounsey's resignation from all officer positions with the Company, including Chief Financial Officer and Secretary, effective March 1, 2026;

RESOLVED FURTHER, that the Board hereby acknowledges and confirms that Louis Mounsey's resignation from his officer positions does not affect his rights, obligations, or status under any of the following agreements, each of which remain in full force and effect in accordance with their terms:

- Employee Confidential Information and Inventions Assignment Agreement dated May 9, 2025
- Common Stock Purchase Agreement dated May 9, 2025
- Intellectual Property Assignment Agreement #1
- Indemnification Agreement dated May 9, 2025

2. ACCEPTANCE OF DIRECTOR RESIGNATION — LOUIS MOUNSEY

WHEREAS, Louis Mounsey was appointed as a director of the Company pursuant to the Action by Written Consent of Sole Incorporator dated May 9, 2025; and

WHEREAS, Mr. Mounsey has confirmed in writing his resignation from the Board of Directors, effective March 22, 2026;

NOW, THEREFORE, BE IT RESOLVED, that the Board hereby accepts Louis Mounsey's resignation as a director of the Company, effective March 22, 2026;

RESOLVED FURTHER, that the authorized number of directors of the Company is hereby reduced from three (3) to two (2);

RESOLVED FURTHER, that the Board hereby confirms that the current members of the Board of Directors are:

1. Colby DeWeese
2. Dr. Caleb Lareau

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2A. AUTHORIZATION TO APPOINT ADDITIONAL DIRECTOR

WHEREAS, the resignation of Louis Mounsey has created a vacancy on the Board of Directors; and

WHEREAS, the Board desires to authorize the appointment of an additional director to fill such vacancy and to strengthen the governance of the Company;

NOW, THEREFORE, BE IT RESOLVED, that the Board hereby authorizes the Chairman, Colby DeWeese, or any other current Director, to identify, nominate, and appoint one (1) additional member to the Board of Directors to fill the vacancy created by Mr. Mounsey's resignation, subject to the approval of a majority of the remaining Directors then in office;

RESOLVED FURTHER, that upon such appointment, the authorized number of directors of the Company shall be increased from two (2) to three (3);

RESOLVED FURTHER, that any such appointee shall serve until the next annual meeting of stockholders or until their successor is duly elected and qualified, or until their earlier resignation or removal.

3. APPOINTMENT OF OFFICERS

WHEREAS, the office of Secretary became vacant upon the resignation of Louis Mounsey; and

WHEREAS, the Board desires to appoint officers to fill vacant positions;

NOW, THEREFORE, BE IT RESOLVED, that the following person is appointed to the office set forth opposite such person's name, to serve at the pleasure of the Board:

Secretary	Colby DeWeese (Interim)

RESOLVED FURTHER, that the Board hereby confirms the current officers of the Company as follows:

Chief Executive Officer	Colby DeWeese
President	Caleb Lareau
Treasurer	Colby DeWeese
Secretary	Colby DeWeese (Interim)

4. RATIFICATION OF INVESTMENT TRANSACTIONS

WHEREAS, since the Company's incorporation, the Company has entered into the following investment agreements and accepted the following investments in the ordinary course of business:

1. Convertible Equity Agreement — Techstars Accelerator 2024, L.P. — $20,000; January 31, 2025 (6% fully diluted ownership)
2. Convertible Promissory Note — Techstars Accelerator 2024, L.P. — $100,000; March 14, 2025 ($3M valuation cap, 5% interest, 80% discount)
3. Post-Money SAFE — Beck Kloss — $5,000; July 11, 2025 ($10M cap, 80% discount)
4. Post-Money SAFE — Ryan Fathi — $20,000; July 11, 2025 ($10M cap, 80% discount)
5. Post-Money SAFE — Tianyi Cai — $10,000; July 11, 2025 ($10M cap, 80% discount)
6. Post-Money SAFE — Cortado Ventures Fund II, LP — $400,000; July 16, 2025 ($10M cap, 80% discount)
7. Post-Money SAFE — Cortado Ventures Fund II SSBCI, LP — $200,000; July 16, 2025 ($10M cap, 80% discount)
8. Post-Money SAFE — Techstars Ventures 2022, L.P. — $500,000; July 18, 2025 ($10M cap, 80% discount)
9. Post-Money SAFE — Wave Function Ventures Fund I, LP — $350,000; July 18, 2025 ($10M cap, 80% discount)
10. Post-Money SAFE — Hurricane Ventures, LP-C1 — $150,000; July 24, 2025 ($10M cap, 80% discount)
11. Post-Money SAFE — Scissortail Ventures Flight Fund I, LP — $150,000; July 24, 2025 ($10M cap, 80% discount)
12. Post-Money SAFE — Sam Walker — $5,000; August 15, 2025 ($10M cap, 80% discount)
13. Post-Money SAFE — Jeff Moore — $25,000; August 15, 2025 ($10M cap, 80% discount)

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14. Post-Money SAFE — David Velasquez — $15,000; August 15, 2025 ($10M cap, 80% discount)

Total: 14 instruments; $1,950,000 aggregate.

WHEREAS, the officers of the Company executed and delivered such agreements in the ordinary course of business and in furtherance of the Company's business operations; and

WHEREAS, the Board desires to ratify, confirm, and approve such transactions;

NOW, THEREFORE, BE IT RESOLVED, that each of the investment agreements and transactions listed above, and all actions taken by the officers of the Company in connection therewith, including the negotiation, execution, and delivery of such agreements and the acceptance of investment proceeds thereunder, are hereby ratified, confirmed, and approved in all respects;

RESOLVED FURTHER, that the officers of the Company are authorized to take any and all further actions and to execute and deliver any and all further documents and instruments as may be necessary or desirable to carry out the intent and purposes of the foregoing resolutions.

5. RATIFICATION OF EMPLOYMENT AND COMPENSATION ACTIONS

WHEREAS, since the Company's incorporation, the officers of the Company have hired employees and independent contractors, established compensation arrangements, and entered into employment-related agreements in the ordinary course of the Company's business; and

WHEREAS, the Board desires to ratify, confirm, and approve all such employment and compensation actions;

NOW, THEREFORE, BE IT RESOLVED, that all employment and compensation decisions made by the officers of the Company from and after May 9, 2025 through the date hereof, including the hiring of employees and independent contractors, the establishment of salaries and other compensation, and the execution of offer letters and contractor agreements (including those administered through Deel), are hereby ratified, confirmed, and approved in all respects;

RESOLVED FURTHER, that the Chief Executive Officer is hereby authorized to hire employees and independent contractors on behalf of the Company and to establish compensation for such persons at such levels as the Chief Executive Officer deems appropriate, provided that the Chief Executive Officer shall present a summary of all hires and compensation to the Board at least annually.

6. RATIFICATION OF MATERIAL CONTRACTS AND BUSINESS ACTIONS

WHEREAS, since the Company's incorporation, the officers of the Company have entered into various contracts, agreements, and business arrangements in the ordinary course of the Company's business, including but not limited to:

- Zeeco ARC deployment partnership
- Office/facility lease(s)
- Bank account openings and maintenance
- Vendor and supplier agreements
- Insurance policies

WHEREAS, the Board desires to ratify, confirm, and approve all such actions;

NOW, THEREFORE, BE IT RESOLVED, that all contracts, agreements, and business arrangements entered into by the officers of the Company from and after May 9, 2025 through the date hereof in the ordinary course of the Company's business are hereby ratified, confirmed, and approved in all respects;

RESOLVED FURTHER, that the officers of the Company are authorized to continue to enter into contracts and agreements in the ordinary course of the Company's business, provided that any single contract or commitment involving expenditures or obligations in excess of $50,000 shall require prior Board approval.

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7. RATIFICATION OF TAX AND REGULATORY FILINGS

WHEREAS, the officers of the Company have made or caused to be made various tax and regulatory filings on behalf of the Company, including the qualification of the Company as a foreign corporation in the State of Oklahoma;

NOW, THEREFORE, BE IT RESOLVED, that all tax and regulatory filings and payments made by or on behalf of the Company from and after May 9, 2025 through the date hereof are hereby ratified, confirmed, and approved in all respects;

RESOLVED FURTHER, that the officers of the Company are authorized and directed to:

1. File and pay the Delaware annual franchise tax and annual report for the tax year 2025, together with any applicable late fees or interest, as soon as practicable;
2. File or cause to be filed the Company's federal income tax return (Form 1120) for the short tax year ending December 31, 2025, or file Form 7004 for an automatic extension of time to file, on or before April 15, 2026;
3. Make all other tax and regulatory filings and payments as may be required by applicable law.

8. EQUITY INCENTIVE PLAN — CONFIRMATION

WHEREAS, the Board adopted the 2025 Equity Incentive Plan (the "Plan") pursuant to the Initial Board Action dated May 9, 2025, and the stockholders approved the Plan; and

WHEREAS, no option grants have been made under the Plan to date;

NOW, THEREFORE, BE IT RESOLVED, that the Board hereby confirms that the 2025 Equity Incentive Plan remains in full force and effect with a Share Reserve of 1,111,120 shares of Common Stock;

RESOLVED FURTHER, that the Board shall consider option grants at a subsequent meeting.

9. ONGOING GOVERNANCE

NOW, THEREFORE, BE IT RESOLVED, that the Board shall hold regular meetings (or act by written consent) no less frequently than quarterly, with the next Board action to occur no later than June 30, 2026;

RESOLVED FURTHER, that the Secretary (or such other officer as the Board may designate) shall maintain a minute book containing copies of all Board and stockholder actions, consents, and resolutions.

10. GENERAL AUTHORIZATION

RESOLVED, that the officers of the Company are authorized and directed to take any and all further actions and to execute and deliver any and all documents and instruments as may be necessary or desirable to carry out the intent and purposes of the foregoing resolutions, and any and all actions heretofore taken by the officers in furtherance of the purposes described in these resolutions are hereby ratified, confirmed, and approved.

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SIGNATURE PAGE

This Action by Unanimous Written Consent of the Board of Directors may be executed in two or more counterparts, each of which will be deemed an original, but all of which together will constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail (including pdf or any electronic signature complying with the U.S. federal ESIGN Act of 2000, Uniform Electronic Transactions Act or other applicable law) or other transmission method and any counterpart so delivered will be deemed to have been duly and validly delivered and be valid and effective for all purposes. This Action by Unanimous Written Consent of the Board of Directors will be filed with the minutes of the proceedings of the Board.

Each of the undersigned has executed this Action by Unanimous Written Consent of the Board of Directors as of the date set forth under such person's name.

DIRECTOR:

Signed by:

Colby Freeman DeWeese

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Colby DeWeese

Date: 3/24/2026

DIRECTOR:

DocuSigned by:

Caleb Lareau

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Dr. Caleb Lareau

Date: 3/24/2026